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March 6, 2025

SENATE BILL NO. 641

By: Paxton

An Act relating to the Unfair Claims Settlement Practices Act; amending 36 O.S. 2021, Section 1250.3, which relates to applicability of Act; construing provisions; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 36 O.S. 2021, Section 1250.3, is amended to read as follows:

Section 1250.3. A. The provisions of the Unfair Claims Settlement Practices Act shall apply to all claims arising under an insurance policy or insurance contract issued by any insurer.

B. It is an unfair claim settlement practice for any insurer to commit any act set out in Section 1250.5 of this title, or to commit a violation of any other provision of the Unfair Claims Settlement Practices Act, if:

1. It is committed flagrantly and in conscious disregard of ~~this act~~ the Unfair Claims Settlement Practices Act or any rules promulgated hereunder; or

1 2. It has been committed with such frequency as to indicate a
2 general business practice to engage in that type of conduct.

3 C. Nothing in this section shall be construed to prevent an
4 insurer from offering an incentive to use a certain repair shop.

5 SECTION 2. This act shall become effective November 1, 2025.

6 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
7 March 6, 2025 - DO PASS
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